



DISTRICT SAFETY COMMITTEE

Legal Reference: California Code of Regulations, Title 8, Section 3203

PURPOSE: The purpose of this guidance document is to assist member school districts in setting up and maintaining an effective district safety committee.

INTRODUCTION: The purpose of a safety committee is to bring workers and managers together in a cooperative effort to promote safety in the workplace. The committee assists the employer and makes recommendations for change regarding occupational safety issues. It is easy to start a safety committee, but developing an effective one (one that achieves and maintains a safe workplace) requires workers and managers who are committed to achieving that goal.

Legal Requirement: Employers who elect to use a labor/management safety committee to comply with the communication requirements of Section 3203 (a)(3), shall include a system for communicating with employees in a form readily understandable by all affected employees on matters relating to occupational safety, including provisions designed to encourage employees to inform the employer of hazards at the worksite without fear of reprisal. Substantial compliance with this provision includes meetings, training programs, posting, written communications, a system of anonymous notification by employees about hazards, labor/management safety committees, or any other means that ensures communication with employees. You are presumed to be in substantial compliance with subsection (a)(3) if the committee:

1. Meets regularly, but not less than quarterly;
2. Prepares and makes available to the affected employees, written records of the safety issues discussed at the committee meetings and, maintained for review by the Cal/OSOGA upon request. The committee meeting records shall be maintained for at least three years;
3. Reviews results of the periodic, scheduled worksite inspections;

4. Reviews investigations of occupational accidents and causes of incidents resulting in occupational injury, occupational illness, or exposure to hazardous substances and, where appropriate, submits suggestions to management for the prevention of future incidents'
5. Reviews investigations of alleged hazardous conditions brought to the attention of any committee member. When determined necessary by the committee, the committee may conduct its own inspection and investigation to assist in remedial solutions' and
6. Submits recommendations to assist in the evaluation of employee safety suggestions.

COMMITTEE MEMBERS - Title 8 does not specify who could serve on your safety committee. However, organizations that use safety committees seem to have the greatest success with committees made up of equal numbers of employee and management representatives and have a chairperson elected by the representatives. A committee of six to eight people for a medium to large school district will generally be large enough to allow for designation of particular duties to members, but not so big as to make it difficult to conduct meetings and coordinate members' activities. Other matters to consider about whom will serve on the committee:

- Employee representatives can volunteer to serve on the committee or their peers can elect them. If your collective bargaining agreement has procedures for selecting representatives, follow those procedures
- Employer representatives represent the employer. You can have more employee representatives on the committee than employer representatives (management) if no one objects. You can choose any employee to serve as a representative.
- Representatives' jobs should reflect the district's major departments and or job classifications such as instruction, workers' compensation, business services and human relations.
- Representatives must be paid their regular wages for safety committee meetings and safety-related training sessions.
- Each representative should serve at least one year on the committee.

Your safety committee must have a chairperson and someone to take minutes at each meeting. The committee doesn't have to have a vice-chair; however, someone should be available to prepare an agenda and conduct committee business

in the chair's absence. The following table summarizes the duties of the chairperson, vice-chair, recorder, and other committee representatives.

Chairperson

- Schedules monthly meetings
- Develops agendas for meetings
- Conducts monthly meetings

Vice-Chair

- Assumes chair's duties when the chair is absent
- Coordinates training for new representatives
- Performs other duties assigned by the chair

Recorder

- Takes minutes at each meeting
- Distributes copies of minutes to representatives
- Posts minutes for other employees to review
- Maintains the safety-committee file
- Keeps minutes and agendas on file for three years

Other committee representatives

- Report employees' safety concerns to the committee
- Report accidents, near miss incidents, and unsafe workplace conditions to the committee
- Report back to employees on their suggestions, concerns, reports
- Suggest items to include in the monthly meeting agenda
- Encourage employees to report workplace hazards and suggest how to control them
- Establish procedures for conducting workplace inspections and for making recommendations to management to eliminate or control hazards
- Help management evaluate the district
- S safety program and recommend how to improve it
- Establish procedures for investigating the causes of accidents and near-miss incidents